

26STCV14248 26STCV14248

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C08%2F21%2F2026

Source SHA-256: 0a6eae9b7177a0347eec234e0bf92c1c4ae1c6e6a511861422c0dde5a17b0505

Case Number: 26STCV14248 Hearing Date: August 21, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

BROOKE

ARMBRISTER,

vs.

THE

FEDERAL RESERVE OF KANSAS CITY, et al.

Case No.:

26STCV14248

Hearing Date: August 21, 2026

Specially Appearing Defendant

Federal Reserve Bank of Kansas City's unopposed motion to quash service of summons is granted.

Specially Appearing Defendant

Federal Reserve Bank of Kansas City ("FRBKC") ("Specially Appearing Defendant") make a special appearance for this Court to quash service of the summons and complaint in this action on the grounds pro per Plaintiff Brooke Armbrister ("Armbrister") ("Plaintiff") has failed to properly serve Specially Appearing Defendant, and the Court accordingly lacks personal jurisdiction over it. (Notice of Motion, pg. 2; C.C.P. §418.10(a)(1).)

Background

On May 5, 2026, Plaintiff filed the operative Complaint. On May 14, 2026, Plaintiff mailed the summons and complaint to "Federal Reserve of Kansas City" at 1 Memorial Drive, Kansas City, MO 64198 on May 14, 2026, via FedEx. (See May 19, 2026, Proof of Service at pg. 3.) Plaintiff filed a proof of substituted service on May 19, 2026, indicating that she served Federal Reserve of Kansas City on behalf of The Federal Bureau of Investigation. (See May 19, 2026, Proof of Service at pgs. 2-3.)

On June 24, 2026, Specially Appearing Defendants filed the instant motion. As of the date of this hearing Plaintiff has not filed an opposition. Plaintiff filed a response to the motion on June 29, 2026.

Motion to Quash

"A defendant, on or before the day of his or her time to plead . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." (C.C.P. §418.10(a)(1).) By filing such motion, "a defendant makes a special appearance for the narrow purpose of contesting personal jurisdiction where the summons is defective." (Stancil v. Superior Court (2021) 11 Cal.5th 381, 393.)

"California is a jurisdiction which in general requires strict statutory compliance with requirements for service of original process." (In re Abrams (1980) 108 Cal.App.3d 685, 693-694.) "Until statutory requirements are satisfied, the Court lacks jurisdiction over a defendant." (Ruttenberg v. Ruttenberg (1997) 53

Cal.App.4th 801, 809.)

“In

the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant.” (Floveyer International, Ltd. v. Superior Court (1997) 59 Cal.App.4th 789, 793; see also Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 961 [“To establish personal jurisdiction, it is essential to comply with the statutory procedures for service of process.”].) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1160, internal quotations omitted.)

California

Rules of Court, Rule 3.110(b) provide that a summons and complaint must be served on each defendant and a proof of service on each defendant must be filed with the court within 60 days after the complaint is filed. Proof of such service must be made by affidavit of the person making the service “showing the time, place, and manner of service” and including facts showing service was made in accordance with California law. (C.C.P. §§417.10(a), 417.30.) Proof of personal service must be made on a form adopted by the Judicial Counsel. (Id. § 417.10(f).)

“When

service is effected by leaving a copy of the summons and complaint at a mailing address, it shall be left with a person at least 18 years of age, who shall be informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (C.C.P. §415.20(a).) Thereafter, another copy of the summons and complaint must be mailed “by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Id.) The person must be at least 18 years old “and informed of the contents thereof. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Id.)

Effecting

service on a corporation requires delivery of summons and complaint to some person on behalf of the corporation. (C.C.P. §416.10; Dill v. Berquist Construction Co., Inc. (1994) 24 Cal.App.4th 1426, 1437.) It must appear from the

allegations of the complaint and summons that the defendant is in fact a corporation. Otherwise, no one can be served on its behalf (i.e., as a representative of the corporation). (Earl W. Schott, Inc. v. Kalar (1993) 20 Cal.App.4th 943, 946.)

Service

may be made upon "the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, [or] a general manager." (C.C.P. §416.10(b).) Service is valid if the person served as "general manager" is apparently in charge of the corporation's office or headquarters, if the person served is of such rank to make it reasonably certain that the corporation will be apprised of service. (See Roehl v. Texas Co. (1930) 107 Cal.App. 691, 705; Gibble v. Car-Lene Research, Inc. (1998) 67 Cal.App.4th 295, 302-303.)

Service

may also be made upon "a person authorized by the corporation to receive service of process." (C.C.P. §416.10(b).)

This includes persons who are designated as the corporation's agent for service of process in various statements which a domestic or foreign corporation is required to file with the Secretary of State under various provisions of the Corporations Code. (See C.C.P. §416.10(a).)

The

authority to accept service may be actual or implied (ostensible). Thus, where the corporation holds a certain person out as one of its principal officers, that person may be held to have ostensible authority to receive service of summons on the corporation's behalf even if such person actually held no office at the time. (Pasadena Medi-Center Associates v. Superior Court (1973) 9 Cal.3d 773, 777.)

The

fact a person is authorized to receive mail on behalf of a corporation and to sign postal receipts acknowledging delivery does not mean he or she is authorized to receive process on behalf of the corporation that is served by mail. (Dill, 24 Cal.App.4th at pg. 1437.)

Here,

Plaintiff failed to meet her burden to demonstrate she served the summons and complaint in the mail to Specially Appearing Defendant because Plaintiff has not shown an attempt to "leav[e] a copy of the summons and complaint during usual office hours" at Specially Appearing Defendant's office. (C.C.P. §415.20(a).) Nor has Plaintiff shown that the summons and complaint were "left with a person at least 18 years of age and informed of the contents thereof." (Id.)

Plaintiff

seemingly mailed Judicial Council Form POS-010 via FedEx to 1 Memorial Drive, Kansas City, Missouri 64198. See May 19, 2026, Proof of Service by Substituted Service, at 3. Mailing under C.C.P. §415.20

is authorized only after a server has first left the summons and complaint with a responsible adult informed of their contents. (C.C.P. §415.20(a), (b).)

Plaintiff

has provided no information to establish that any purported recipient was at least 18 years old and "informed of the contents" of Plaintiff's purported service package. (C.C.P. §415.20(a).)

Accordingly,

Specially Appearing Defendants' motion to quash is granted.

Conclusion

Specially Appearing Defendant's unopposed motion to quash service of summons is granted.

Moving Party to give notice.

Dated: August

_____, 2026

Hon. Daniel M. Crowley

Judge of the Superior

Court